

**PERFORMANCE WORK STATEMENT
FOR
WATER QUALITY TESTING AT LUCKY PEAK LAKE**

1. General Information: This BASE YEAR + FOUR OPTION YEARS Service Contract provides water quality testing at various locations within the USACE Lucky Peak Dam & Lake boundary located in Ada and Boise Counties, ID. The Contractor shall be responsible for all costs related to performing this contract and its successful completion.

2. Scope: The Contractor must provide all personnel, equipment, tools, materials, supervision, and other items and services necessary to perform Water Quality Testing as defined in this Performance Work Statement (PWS) at Lucky Peak Lake. The Contractor must perform to the standards in this contract. The quantities of work are listed below:

2.1 Surface Water Quality, Field Collection and Lab Testing – Bi-Weekly (Every other week), E. Coli: The Contractor must collect water samples from the Robie Creek shoreline access area and have subsequent laboratory tests performed by a state certified lab, in accordance with analytical methods contained in Idaho State Code, IDAPA 58.01.02 specifically for Bacteria tests (E. Coli) in recreation waters. These tests will be performed every other week, beginning on the first week the lake elevation reaches 3,050 feet above sea level until the level drops below 3,050 no later than 30 September of any year. The samples must be collected no more than seven (7) days apart. The Contractor must submit test results to the Contract Officer Representative (COR) within one (1) day of receipt to the Contractor. The Contractor must notify the COR within two (2) hours of any violations to the thresholds of the state water quality standards. Not to exceed ten (10).

2.2 Drinking Water Quality Testing (Coliforms) – Quarterly: The Contractor must collect water samples from one public drinking water system and two private wells (Macks Creek, Barclay Bay host site, and the Lucky Peak Admin Office (Project Office)), not to exceed 12 in a year. The Contractor must have subsequent laboratory tests performed by a state certified lab, in accordance with analytical methods contained in Idaho State Code, IDAPA 58.01.8. These tests will be performed on a quarterly basis. The quarters are designated as follows: 1st quarter is May through June, 2nd quarter is July through September, 3rd quarter is October through December, and 4th quarter is January through April. The Contractor must submit test results to the COR within one (1) day of receipt to the Contractor. The Contractor must notify the COR within two (2) hours of any violations to the thresholds of the state water quality standards. The two (2) private wells shall be tested to the same standards as the public water system. If any sample detects the presence of coliforms, the Contractor shall, perform a resample and submit for testing within 24 hours. Drinking water quality tests shall also be submitted to the Idaho Department of Environmental Quality. Not to exceed 12 months.

2.3 Drinking Water Quality Testing (Coliforms) – Yearly Nitrate: The Contractor must collect water samples from one public drinking water system and two private wells (Macks Creek, Barclay Bay host site and Project office), and have subsequent laboratory tests performed, by a state certified lab, in accordance with analytical methods contained in Idaho Sate Code, IDAPA 58.01.08. Nitrate testing will be performed on a yearly basis (Base year testing serving as the baseline) during the 2nd quarter, July through September, during same visit as the E. Coli test. The Contractor must submit test results to the COR within one (1) day of receipt to the Contractor. The Contractor must notify the COR within two (2) hours of any violations to the thresholds of the state water quality standards. Drinking water quality tests shall also be submitted to the Idaho Department of Environmental Quality. Not to exceed three (3).

2.4 Drinking Water Quality Testing (Coliforms) – As Needed: The Contractor shall collect additional drinking water samples at the request of the COR at one (1) or more of the designated areas. These tests may be requested following water system maintenance or the validation of any failed test. These tests will be the same as in line item 2.2. The Contractor must submit test results to the COR within one (1) day of receipt to the Contractor. The Contractor must notify the COR within two (2) hours of any violations to the thresholds of the state water quality standards. The two (2) private wells shall be tested to the same standards as the public water system. If any sample detects the presence of Coliforms the Contractor shall perform a resample and submit for testing within 24 hours. Drinking water quality tests shall also be submitted to the Idaho Department of Environmental Quality. Not to exceed six (6).

3. Period of Performance: The period of performance must be for one Base Period of 12 months and four 12-month Option Periods. The Period of Performance reads as follows:

Base Period	May 1, 2026 – April 30, 2027
Option Period 1	May 1, 2027 – April 30, 2028
Option Period 2	May 1, 2028 – April 30, 2029
Option Period 3	May 1, 2029 – April 30, 2030
Option Period 4	May 1, 2030 – April 30, 2031

4. Contractor Personnel

4.1 Contract Manager: The Contractor must provide a Contract Manager who must be responsible for the performance of the work. The name of this person, and an alternate or alternates, who must act for the Contractor when the manager is absent, must be designated in writing to the Contracting Officer.

4.1.1 The Contract Manager or alternate must be available during normal duty hours within four (4) hours to meet on the installation with

Government personnel (designated by the Contracting Officer) to discuss problem areas. After normal duty hours, the manager or alternate must be available within eight (8) hours.

4.1.2 The Contract Manager must maintain a telephone number for the Contracting Officer, COR, or park office personnel to contact the Contract Manager 24 hours a day throughout the life of this contract. This phone number must have the capability to leave a message. The Contract Manager will be considered officially notified when called for problems or other work-related items when a message is left at this number.

4.1.3 The Contract Manager and alternate or alternates must be able to read, write, speak, and understand English.

4.2 Contractor Employees: The Contractor must not employ persons for work on this contract if such employee is considered by the Contracting Officer to be a potential threat to the health, safety, security, general well-being, or operational mission of the installation and its population.

4.2.1 The Contractor's personnel shall present a neat appearance and be easily recognized as contractor employees.

4.2.2 The Contractor must not employ any person who is an employee of the U.S. Government if employing that person would create a conflict of interest.

4.2.3 The Contractor must make sure employees who are required to drive vehicles have the appropriate state issued driver's license.

5. Contractor Quality Control Program: The Quality Control Program is the means by which the Contractor assures himself and the COR that adequate inspections of work performance are being conducted so that all work meets contract specifications. The Contractor's Quality Control Program shall be established and maintained for all services included in the contract and shall include the surveillance required to meet all contract specifications regarding schedule compliance, proper equipment, materials, and work performance. The Contractor shall be responsible for controlling work quality through an effective quality control program involving management, training, and sufficient inspections of all work items to ensure compliance with all contract requirements.

6. Quality Assurance: For tasks listed on the PRS (Section 10), the COR will follow the methods or surveillance specified in this contract. Government personnel will record all surveillance observations. When an observation indicated defective performance, the COR will require the Contract Manager or representative at the site to initial the observation. The initialing of the

observation does not necessarily constitute concurrence with the observation, only acknowledgement that he or she has been made aware of the defective performance. Any action taken by the Contracting Officer as a result of surveillance will be in accordance with the terms of this contract.

7. Hours of Operation

7.1 Normal Hours of Operation: The Contractor must perform the services required under this contract during the following hours:

7.1.1 Monday through Friday workweek schedule, excluding all federal holidays. Work on evenings, nights, and weekends is not allowed, unless authorized in advance by the COR. If scheduled work and public events within the recreation areas occur on the same day, the COR may request that the Contractor reschedule work to avoid potential conflicts with the public.

7.2 Holidays: Work on federal holidays will not be allowed unless approved in advance by the COR.

7.3 Work Notification: The Contractor must notify the COR of all planned work activities at a minimum of one (1) business day prior to arriving on site. In addition, the Contractor must check in at the beginning of the workday at the Lucky Peak Lake Administrative Office before beginning each workday unless other arrangements have been made when notifying the COR.

8. Antiterrorism/Operation Security (AT/OPSEC)

8.1 Suspicious Activity Reporting Training: (e.g. iWATCH, CorpsWatch, or See Something, Say Something): All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

8.2 Pre-Screen Candidates Using E-Verify: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 (reference the Revolutionary Federal Acquisition Regulation Overhaul (RFO) Subpart 22.18) in using the E-Verify Program at (<https://www.e-verify.gov/>) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i) (reference RFO 22.1802-1(b)). An initial list of verified/eligible candidates shall be provided to the COR

no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

8.3 Antiterrorism (AT) Level I Training: All contract personnel requiring routine access to Army installations, facilities, and controlled access areas, or requiring network access shall complete initial and annual refresher AT Level I awareness training. Online AT Level I awareness training is available at <https://jko.jten.mil/> (website subject to change).

9. Protection Of Government Facilities: The Contractor will be responsible for restoring any Government facilities or property damaged as a result of Contractor's operations, including natural features. Reasonable care will be used to avoid damage to existing structures, equipment, facilities, and vegetation in the areas serviced. Any damage will be repaired, or the items will be replaced at no cost to the Government. If the Contractor will not make such repair or replacement, the cost thereof will be deducted from normal contract payments. The Contractor shall be responsible for injuries to persons or damages to private property (vehicles, camping units, equipment, etc...) caused by the Contractor's activities.

10. Physical Security and Access Control Requirements: All contract personnel requiring physical access to a federal installation or facility shall comply with the access control procedures of that location. Contract personnel requiring unescorted access to meet contract performance requirements on a DoD installation in the US shall be vetted by the installation/facility Provost Marshal/Directorate of Emergency Services/Security Office using the National Crime Information Center-Interstate Identification Index (commonly referred to as "NCIC-III") and Terrorist Screening Database (commonly referred to as "TSDB"). Contract personnel shall comply with all personal identity verification requirements specified in installation/facility policies and procedures. Contract personnel who do not meet requirements for unescorted access to USACE facilities shall coordinate escorted access with the Government representative, as needed. Contract personnel who receive keys, access cards, or lock combinations that provide access to government-owned property shall comply with key and lock control procedures of the RA.

11. Escorting In Classified and/or Sensitive Areas: In accordance with applicable regulations, all contract personnel who do not possess the appropriate security clearance or access privileges will be escorted in areas where they may be exposed to classified information or operations, sensitive information or activities, or restricted areas.

12. Performance Summary Review

12.1 Performance Requirements Summary: Acceptable Quality Level (AQL) for each of these objectives is 90%

Performance Objectives	PWS Section	Performance Threshold	Method of Surveillance
Surface Water Quality, Field Collection and Lab Testing	Section 2.1	90%	Periodic Inspection
Drinking Water Quality, Field Collection and Lab Testing	Section 2.2	90%	Periodic Inspection
Drinking Water Quality Testing – Yearly Nitrate	Section 2.3	90%	Periodic Inspection
Contractor Must Perform Additional Tests Within 24 Hours of Receiving Notice	Section 2.5	90%	Periodic Inspection
Contractor Must Provide a Quality Control Plan	Section 5	100%	Periodic Inspection
The Contractor Must Notify the COR of All Planned Work Activities.	Section 7.3	90%	Periodic Inspection
Invoices and Safety Exposure Reports	Section 20	90%	Periodic Inspection

12.2 Surveillance: Surveillance will be accomplished using the following Performance Criteria Analysis. If performance is not satisfactory to the percentage listed in the AQL, the COR will notify the Contractor's site manager, with a telephone call, as soon as practicable and ask the Contractor to correct the problem. If a safety issue arises from the Contractor's unacceptable performance, the Contractor will be given notification and four (4) hours to correct the unacceptable performance. The COR may approve additional time if needed. If it is not a safety issue the Contractor will have three (3) days to correct any deficiencies. The COR will notate on the Performance Criteria Analysis the date, time, and location of the deficiency and send a copy to the Contractor to sign and return to the COR within three (3) business days.

- 13. Records:** The Contractor must be responsible for creating, maintaining and disposing of only those Government required records that are specifically cited in this PWS or required by the provisions of a mandatory directive listed in Technical Exhibit 1, Applicable Publications and Forms. If requested by the Government, the Contractor must provide the original record or a reproducible copy of any such record within five (5) working days of receipt of the request.
- 14. Pre-Work Meeting:** The Contractor will meet with the COR prior to commencement of work to discuss contract requirements. The Contractor must bring all required submittals as required in this contract to the pre-work meeting.
- 15. Call-Out Number:** The Contractor will maintain a telephone number(s) and means of contact 24 hours a day, every day. The contact will be a person, answering service or machine. Once the Corps has notified this contact, the Contractor will be considered officially notified when called for problems or other work-related items.
- 16. Certification:** The Contractor will hold all licenses and certifications required by the State of Idaho, Ada County and Boise County as needed and will provide proof of such certification before the start of work. The Contractor will be responsible for any permits required to perform services.
- 17. Ability to Perform:** The Contractor will have sufficient equipment and labor to perform services prescribed. If for any reason the Contractor will be unable to perform any service as scheduled, the COR will be notified in advance.
- 18. Service and Payments:** Invoices will be submitted in arrears to USACE Lucky Peak Lake via email. Invoices will be verified by the COR before payment can be authorized.
- 19. Safety and Health Codes:** The Contractor will comply with all pertinent provisions of the Corps of Engineers Manual, EM 385-1-1, Safety and Health Requirement Manual, the Idaho State Health Code, OSHA, and Ada, Boise County Codes.
- 20. Unsafe Conditions:** Work will be halted by the Contracting Officer or COR if an unsafe condition exists or will develop if work continues. The Contractor will have no basis for compensation should such a work stoppage cost the Contractor damages. Work will not resume until the condition is corrected.
- 21. Safety Exposure Report:** The Contractor shall submit a Safety Exposure Report to the COR with each invoice documenting work hours accrued, work-related injuries, illnesses and fatalities sustained by Contractor employees while providing services at Lucky Peak Dam & Lake over the invoice period. Failure to submit a Safety Exposure Report with the invoice will delay payment for services performed.

22. Insurance: A submittal showing a certificate of liability insurance shall be submitted to the COR prior to the commencement of work.

23. Safety and Health Codes: The Contractor will comply with all pertinent provisions of the Corps of Engineers Manual, EM 385-1-1, Safety and Health Requirement Manual, the Idaho State Health Code, OSHA, and Ada, Boise County Codes.

24. General Security Requirements and Guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor (“Contractor”) and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as “RAMs”), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

25. Required Submittals

22.1 Invoices (monthly)

22.2 Safety Exposure Report

22.3 Quality Control Reports (as per QC Plan – minimum monthly)

22.4 Contract Manager Designation

22.5 Insurance Certificate

22.5 Results of Testing

Technical Exhibit 1: Applicable Publications and Forms

Publications and forms that apply to this PWS are listed below. The publications and forms have been designated as either mandatory or informational. The Contractor is obligated to follow those publications and use those forms designated as mandatory to the extent specified in other sections of this PWS. The Contractor must be guided by those publications or use those forms designated as informational to the extent necessary to accomplish requirements in this PWS.

1. Mandatory Publications

EM 385-1-1	USACE Safety and Health Requirements Manual https://www.usace.army.mil/Missions/Safety-and-Occupational-Health/Safety-and-Health-Requirements-Manual/	30-Nov-2014
ER 200-2-3	Environmental Quality - Environmental Compliance Policies https://planning.erdc.dren.mil	30-Oct-1996
EP 200-2-3	Environmental Quality - Environmental Compliance Guidance and Procedures https://www.publications.usace.army.mil/USACE-Publications/Engineer-Pamphlets	30-Oct-1996
29 CFR 1910	Occupational Safety and Health Act (OSHA) https://www.osha.gov/laws-regs/regulations/standardnumber/1910	Current provisions
IDAPA 58.01.02	Water Quality Standards - attached https://www.deq.idaho.gov/rules-and-guidance/rulemaking/water-quality-docket-no-58-0102-1803/	Current provisions
IDAPA 58.01.08	Idaho Rules for Public Drinking Water Systems – attached https://www.deq.idaho.gov/rules-and-guidance/rulemaking/drinking-water-docket-no-58-0108-2502/	Current provisions

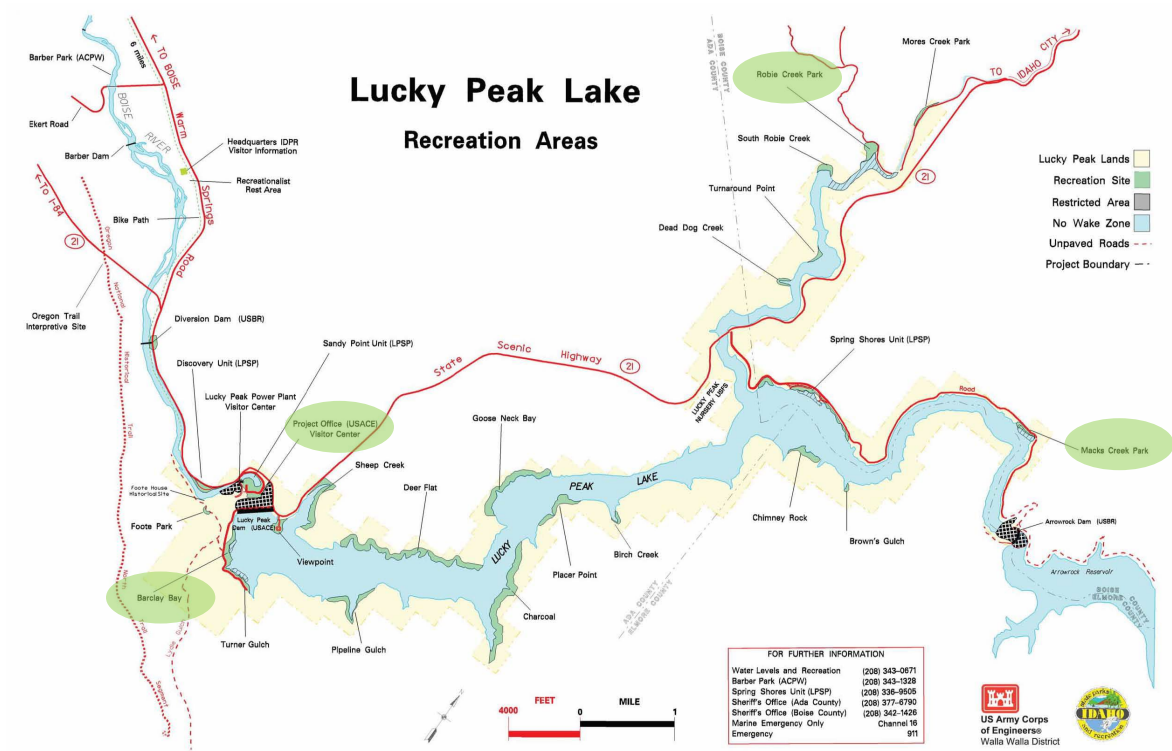
2. Forms

Safety Exposure Report	Current
Incident/Accident Report	Current

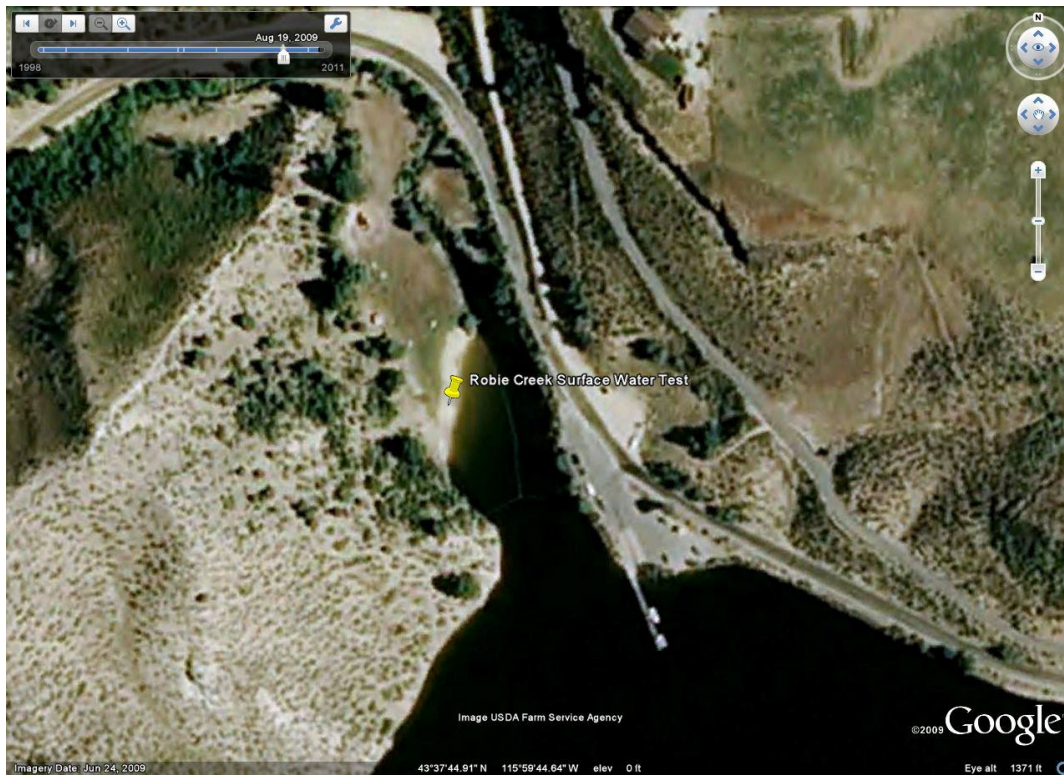
Incident/Accident Report

An accident constitutes an incident or act involving the Contractor, which may/may not have caused obvious damage to persons or property. This includes injuries to Contractor employees, members of the public, or damage to Government or personal property. Contractor shall notify the COR by telephone within 30 minutes of any incident or accident, followed by a written report (within one working day). These reports shall include, but are not limited to, location, nature of the injury or accident, authorities notified and the action taken along with any other pertinent information such as who was injured and how it may have happened. Reports shall be accompanied by sketches, graphs, drawings, and photographs. The reports shall be forwarded to the COR within one (1) working day following the injury or accident.

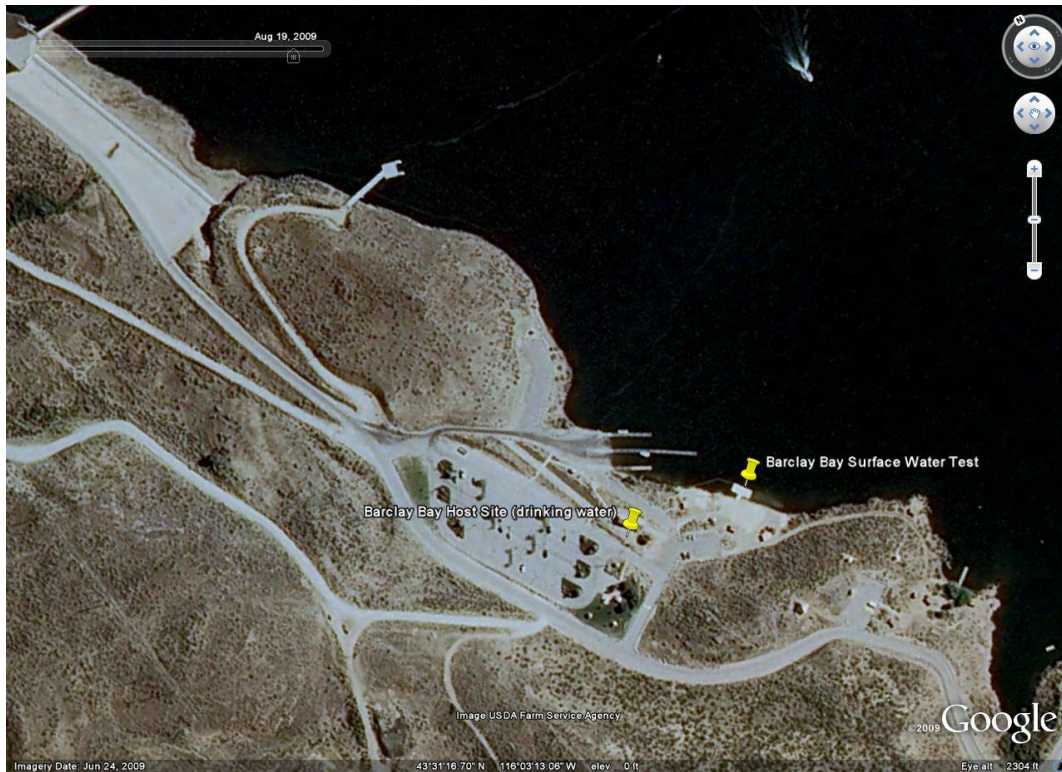
Technical Exhibit 2 – Maps and Work Area Layouts



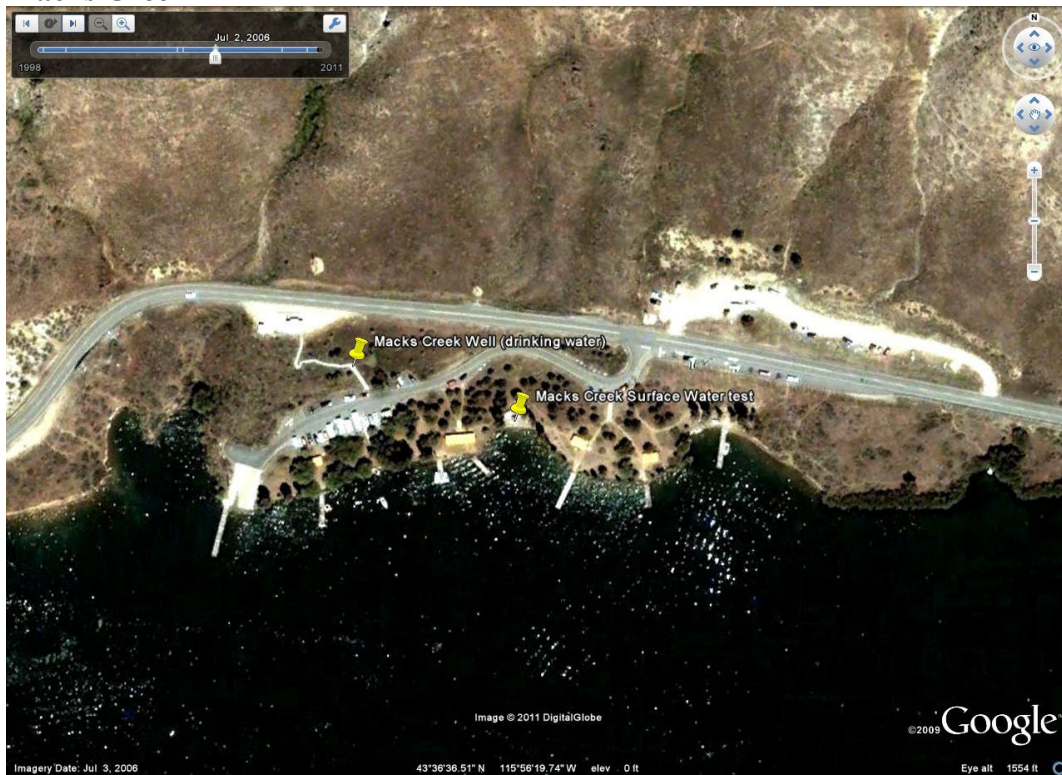
Robie Creek



Barclay Bay



Macks Creek



Project Office

